

CASE ANALYSIS TABLES

Wilbur William Matthee v. AfroCentric Health / Medscheme Holdings

Last Updated: 2026-04-03 | Total Entries: 148

TABLE 1: KEY EVENTS

This table documents the chronological sequence of significant events in the case, highlighting incidents that directly contributed to occupational detriment. Events marked in RED indicate direct causal links to the deterioration of the employment relationship and subsequent constructive dismissal.

Date	Event Description	Causal Link to Occupational Detriment	Ref
2024-04-02	BAIT AND SWITCH: Recruited for 'Specialist: Care Manager' but offered 'Care Coordinator' position	Title suppression - foundational breach of employment contract terms	1
2025-03-06	FIRST DOCUMENTED THREAT: Mary-Ann Jones threatens Matthee: 'this is the end of you'	Direct intimidation establishing hostile work environment pattern	2
2025-03-18	Admission to Akeso Stepping Stones Clinic for inpatient treatment (severe depression, PTSD)	Occupational detriment manifesting as mental health crisis requiring hospitalization	3
2025-05-16	Matthee provides Dr Jacques Malan's psychiatric letter to Mapule Mashele - disclosure of severe depression and PTSD	Employer placed on formal notice of disability - duty to accommodate triggered	4
2025-07-23	Unlawful salary deduction: 40.47% (R14,811.77) deducted without consultation while between psychiatric admissions	Exceeds BCEA s34(2) 25% cap - financial detriment during medical vulnerability	5
2025-09-23	Gender identity discrimination: Jones posts 'Wilma' in team Teams channel	Discriminatory conduct creating hostile environment - protected ground violation	6
2025-10-01	Mashele closes discrimination complaint as 'typo' - Matthee remains in Jones's reporting line	Whitewash of serious complaint - failure to remove from hostile manager	7
2025-10-23	Protected disclosure (patient safety): Matthee identifies Gexus-DMS system integration gap	PDA disclosure rejected - professional judgment overridden	8
2025-10-31	Recorded admission of retaliatory motive: Jones states 'You made a case against me, so I can make a case against you'	Direct evidence of PDA breach and retaliatory intent	9
2025-11-02	Formal grievance against Mary-Ann Jones - 30+ days institutional silence begins	Systemic failure to address grievances - constructive dismissal foundation	10

Date	Event Description	Causal Link to Occupational Detriment	Ref
2025-12-10	Employer's Opposing Affidavit characterises depression as 'cynical excuse', 'untruthful character'	Bad faith litigation - personal attacks under oath - final intolerable act	11
2025-12-12	Resignation effective - employment terminated due to intolerable conditions	Constructive dismissal executed - occupational detriment complete	12

Additional entries can be added below:

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TABLE 2: KEY PATTERN IDENTIFICATION

This table identifies recurring patterns of conduct that demonstrate systematic institutional failures. Each pattern represents a violation of workplace rights and contributed cumulatively to the occupational detriment suffered.

Pattern Category	Evidence	Occupational Detriment Impact
Retaliatory Conduct	Recorded statement: 'You made a case against me, so I can make a case against you'; punitive unpaid leave entries; 'ripple effect' threats	Created climate of fear and intimidation; suppressed legitimate grievances
Discriminatory Behaviour	'Wilma' incident; gender-based targeting; dismissal of discrimination complaint as 'typo'	Violated dignity and equality rights; hostile work environment
Failure to Accommodate	No reasonable accommodation for medical crisis; 40.47% deduction during psychiatric treatment; refusal to stagger deductions	Aggravated mental health condition; financial hardship during vulnerability
Institutional Silence	30+ days no response to grievance; Board ignored humanitarian notices; invalid email deflections	Denied access to internal remedies; forced external escalation
Title Suppression	Recruited as Specialist, contracted as Coordinator; Certificate of Service misrepresentation	Career progression blocked; professional status undermined
Protected Disclosure Retaliation	Patient safety concerns dismissed; professional judgment overridden; 'insubordination' framing	PDA rights violated; ethical professional silenced
Bad Faith Litigation	Opposing affidavit characterising depression as 'cynical excuse'; request for costs against self-represented litigant	Abuse of legal process; psychological warfare
Gatekeeping	CRO asking Matthee to stop emailing directors; 'impatience does not serve you well'	Blocked access to Board oversight; governance rights denied

Additional patterns can be documented below:

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TABLE 3: UPDATED - AWAITING FEEDBACK

This table tracks outstanding matters requiring institutional response. The prolonged silence from regulatory bodies demonstrates systemic failures in accountability mechanisms and access to justice.

Date	Regulator/Body	Matter Awaiting Response	Days Pending
2025-12-23	CMS	Administrator misconduct, Gexus/DMS integration gap generating false non-adherence reports	100+
2025-12-23	SAHRC	Systemic governance failures, procedural obstruction, humanitarian crisis	100+
2025-12-23	DEL	Unlawful salary deductions, gender discrimination, retaliation, constructive dismissal	100+
2025-12-23	JSE	Board governance failure, P1 Material Risk Report ignored, King IV breaches	100+
2026-01-20	JSE (Investigations)	Failed conciliation, employer blocking financial relief, weaponising litigation	70+
2026-02-16	SANC	Professional misconduct against Mary-Ann Jones and Mapule Mashele (nurses)	45+
2026-02-16	SAPC	Unprofessional conduct against Lisa Mari - dismissed system integration gap	45+
2026-02-16	CCMA Ethics	Commissioner bias complaint - Reference 350111 (21+ days feedback promised)	45+
2026-02-19	TWBH/Schroter	Whistleblower protection assessment - referred to Marco van der Walt	40+
2026-03-20	CMS (follow-up)	Uncorrected Gexus/DMS integration error - ongoing patient safety risk	14+

Additional pending matters can be added below:

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TABLE 4: CRITICAL DOCUMENTS REFERENCE IN CORRESPONDENCE

This table catalogues essential documentary evidence referenced throughout the correspondence. These documents establish the evidentiary foundation for claims of unlawful conduct and institutional failures.

Date	Document	Significance / Evidentiary Value	Status
2024-04-09	Employment Contract (Care Coordinator, Grade B4M1)	Key evidence of title suppression - recruited as Specialist, contracted as Coordinator	Secured
2025-04-01	Dr Jacques Malan Sick Note (3-4 weeks inpatient)	Medical certification of unfitness for work - disability disclosure	Secured
2025-05-16	Dr Jacques Malan Psychiatric Letter	Formal disclosure of severe depression and PTSD to employer	Secured
2025-07-24	AOD Policy Email (Jones)	Employer acknowledged 25% BCEA cap but deducted 40.47% - smoking gun evidence	Secured
2025-09-25	Formal Discrimination Complaint	Initiated formal HR process - HR promised protection but failed to remove from hostile manager	Secured
2025-10-31	Recorded Interaction (Jones)	Direct evidence of PDA breach, retaliatory intent, veiled threat	Secured
2025-11-02	Formal Grievance (32 attachments)	Comprehensive documentation of institutional failures	Secured
2025-12-10	Employer's Opposing Affidavit	Bad faith litigation - character attacks under oath	Secured
2026-01-19	Certificate of Service Dispute	Employer misrepresents role as 'Care Coordinator' - fraudulent documentation	Disputed
2026-03-05	BCEA s77A Application (Labour Court)	Urgent application for unlawful salary deduction relief	Filed
2026-03-23	Section 162 Director Delinquency Application	High Court urgent application against Board members	Filed

Additional documents can be referenced below:

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SUMMARY: SYSTEMIC INSTITUTIONAL FAILURES

The following analysis demonstrates how the documented events, patterns, and regulatory non-responses relate to failures across multiple legal frameworks and institutions:

Legal Framework	Institution	Nature of Failure
Protected Disclosures Act (PDA)	AfroCentric/Medscheme	Retaliation against protected disclosure; dismissal of patient safety concerns; 'insubordination' framing
	CCMA	Commissioner bias; pre-judgment ('nothing here relates to protected disclosure'); 'Google it' remark
	Public Protector	Not yet engaged - SAHRC referred matter but no action taken
Employment Equity Act (EEA)	AfroCentric/Medscheme	Gender identity discrimination; failure to take reasonable corrective measures; 'Wilma' incident dismissed as 'typo'
	CCMA/Labour Court	Matters pending - systemic delays in addressing discrimination claims
Labour Relations Act (LRA)	AfroCentric/Medscheme	Automatically unfair constructive dismissal; refusal to bargain in good faith; 30+ days institutional silence
	CCMA	Conciliation failed; bias complaint; lack of jurisdiction for PDA matters
	Labour Court	Obstructed filing process; poorly explained rejections; punitive cost orders against self-represented litigant
Constitutional Rights	AfroCentric/Medscheme	Right to dignity (discrimination); right to fair labour practices; right to just administrative action
	SAHRC	Passed buck to CCMA/Labour Court - 'not best placed' to address victimization
Basic Conditions of Employment Act (BCEA)	AfroCentric/Medscheme	40.47% salary deduction exceeds 25% cap (s34(2)); no written consent; refusal to stagger
	DEL	Lacks authority under Section 70(b) - earnings above threshold; passed buck to CCMA
Occupational Health & Safety Act (OHSA)	AfroCentric/Medscheme	Failure to ensure safe working environment; psychological harassment; no reasonable accommodation
	SAPS/NPA	Delft Station Commander refused to open criminal case; usurped NPA function
Medical Schemes Act (MSA)	CMS	Declined jurisdiction - passed buck to HPCSA; made no formal finding of administrator misconduct
JSE Listings Requirements	JSE	Determined matters fall outside Listings Requirements - passed buck to CCMA/Labour Court/Equality Court
Financial Sector Conduct Authority	FSCA	No documented response to governance and conduct complaints

Legal Framework	Institution	Nature of Failure
Criminal Justice System	SAPS Delft	Unlawful refusal to open criminal case; Station Commander decided prosecutorial merit without reviewing evidence
	SAPS Provincial	Multiple invalid email addresses; technical deflection
Pharmacy Council (SAPC)	SAPC	Delayed response; server unreachable; request to resend attachments
Nursing Council (SANC)	SANC	Complete non-response to professional misconduct complaint (6+ days silence); Ministerial escalation required
Health Professions Council (HPCSA)	HPCSA	Passed buck to SANC ('no jurisdiction over nurses'); passed buck to SAPC for pharmacist
B-BBEE Act	B-BBEE Commission	No documented response to fronting and misrepresentation concerns
High Court (WC)	High Court	Punitive cost order against self-represented litigant in urgent application; Registrar's office non-responsive
National Department of Health	NDOH	Actively requesting documents - only institution showing engagement (Feb 2026)
Labour Court	Labour Court	Obstructed filing - confusing rejection reasons; lack of administrative support for self-represented litigants
CCMA	CCMA	Commissioner bias; mailbox full (technical failure); lack of jurisdiction for PDA matters; passed buck to Labour Court
Department of Employment & Labour	DEL	Delayed acknowledgment (6 days); lacks authority for high earners; passed buck to UIF unit and CCMA
Human Rights Framework	SAHRC	Passed buck to CCMA/Labour Court and Public Protector - 'not best placed' despite systemic violations